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| 1 | 2020-01168103<br><br>AFC Cal, LLC<br>vs.<br>Pascual                         | <b>Plaintiff AFC Cal, LLC</b><br>Motion to Amend Judgment<br><br><b>Continued to January 25, 2024</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 2 | 2023-01335355<br><br>Ascendant<br>International,<br>Inc.<br>vs.<br>Martinez | <b>Lucy Scott, Ascendant International, Inc.</b><br>Petition to Confirm Arbitration Award<br><br><p>Petitioners Ascendant International, Inc., dba RE/MAX LUXURY PROPERTIES, and Lucy Liu Scott (collectively, "Petitioners") seek an order confirming the arbitration award issued on 6/15/2023 by Irene M. Guimera in the amount of \$64,102.67, which includes arbitration fees in the amount of \$1,475 and attorneys' fees and costs in the amount of \$29,929.51 in favor of Petitioners and against Respondents Adrian Martinez ("Martinez") and Am Sea, LLC ("Am Sea") (collectively, "Respondents").</p> <p>On 10/26/2023, the hearing on this petition was continued to allow Petitioners to file a proof of service showing the petition and notice of continuance were properly served on Respondents.</p> <p>As the Court previously noted, Petitioners have not shown that Respondents agreed to allow WHGC, PLC to accept service on Respondents' behalf, or that they agreed to electronic service.</p> <p>To the extent Petitioners contend the petition and notice of continuance was properly served on Martinez on November 6, 2023, Petitioners' proof of service did not show the documents were properly served in accordance with Code of Civil Procedure section 415.20, subdivision (a). (ROA No. 27.) It is unclear whether service at the 135 South State College Boulevard address is proper when another representative at the location informed Petitioners' process server that Respondents did not have a physical address at the location, that Respondents were just virtual clients, and that the representative was not authorized to accept service of process. (See, ROA No. 29, Bohm Decl., ¶ 7.) Petitioners offer no explanation as to what changed and why service at that address would be proper. It is also unclear whether the virtual office is for Martinez or Am Sea. In addition, Petitioner filed the 11/13/2023 Application and Order for Publication of Summons <i>after</i> the purported personal service on Martinez and the Application requested an order allowing service by publication on "Adrian Martinez, Am Sea, LLC." (ROA No. 29, Page 1, Section 2.) It appears Petitioners concede service has not been effectuated on either respondent.</p> <p>Petitioners have not shown the petition and notice of continuance were properly served on Respondents in accordance with CCP sections 1290.2 and 1290.4.</p> <p><b>The hearing on this petition is continued 2/8/2024 at 2:00 PM in Department C12.</b> No later than five court days before the continued hearing date, Petitioners shall file a proof of service showing the petition and notice of continuance were properly served on Respondents.</p> <p>Petitioners shall give notice in accordance with Code of Civil Procedure section 1290.4.</p> |